DERRICK LAMONT BEVERLY
Defendant, In Propria Persona Sui Juris
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STANLEY-MOSK SUPERIOR COURTHOUSE

OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

CENTRAL DISTRICT

FOX NORMANDIE APARTMEMTS, LP., Plaintiffs, **vs.** **DERRICK L. BEVERLY** Defendant,	**Case No.: 22STUD06657** **DECLARATION OF DERRICK LAMONT BEVERLY IN OPPOSITION TO ORDER TO SHOW CAUSE RE SANCTIONS** **DATE: JANUARY 20, 2026** **TIME: 8:30 A.M.** **DEPT.: 91** **JUDGE: HON. MIKE H. MADOKORO**

DECLARATION OF DERRICK LAMONT BEVERLY

IN OPPOSITION TO ORDER TO SHOW CAUSE RE SANCTIONS

I, DERRICK LAMONT BEVERLY, declare:

1. I am the Defendant and judgment debtor in this action, Fox Normandie Apartments, LP v.

Derrick L. Beverly, Los Angeles Superior Court Case No. 22STUD06657. I make this declaration in opposition to the Order to Show Cause re Sanctions set for January 20, 2026. I have personal knowledge of the facts set forth herein and, if called as a witness, could and would competently testify thereto.

2. I have been self-represented ("in propria persona") throughout the post-judgment and appeal proceedings in this matter. I am currently unhoused and have been living in unstable, street-level conditions since the Sheriff lockout that occurred on or about January 26, 2023.

3. My attempts to obtain legal assistance have so far been unsuccessful. I do not have formal legal training. I have struggled with understanding which issues must be raised in this unlawful detainer case, which must be raised on appeal, and which belong in separate civil complaints.

4. I filed multiple ex parte applications in 2025 because I believed there were serious

problems with notice, default, and the harsh forfeiture that resulted in my eviction and homelessness. My intention was to obtain some review or remedial relief from this Court, not to harass Plaintiff or its counsel.

5. I acknowledge that the Court denied several of my ex parte applications for lack of a proper declaration under California Rules of Court, rule 3.1204, for not clearly stating the specific relief requested, and for not attaching sufficient evidentiary support. I have since obtained and reviewed copies of the Court's October and December 2025 minute orders and any Department 91 standing order.

6. I further acknowledge that, until recently, I did not fully understand that Plaintiff's designated electronic service address for all filings and ex parte notice is eservice@loacs.com. I had been using individual attorney email addresses. On January 7, 2026, Plaintiff's legal assistant emailed me confirming that "our office's only email for electronic service of documents, as well as ex parte notice, is eservice@loacs.com." I now understand that I must use that address for any future electronic service or ex parte notice.

7. With assistance, I have begun to correct the procedural defects the Court identified. This includes preparing a Corrected Proof of Electronic Service (POS-050/EFS-050) with the correct caption and case number, a Notice of Filing Corrected Proof of Electronic

Service, and a consolidated Motion to Vacate Default and Default Judgment with a full memorandum of points and authorities and a detailed declaration and exhibit index.

8. I am not able to pay $4,605.29 or any similar amount in sanctions. I have no stable income, no permanent housing, and am still trying to meet basic survival needs. A large monetary sanction would be impossible for me to satisfy and would function as a punishment rather than a deterrent.

9. I understand now that this Court has serious concerns about repeated ex parte filings in a closed unlawful detainer case. I take those concerns seriously. If the Court provides further specific guidance on what, if anything, may still be filed in this case, and on proper ex parte procedures, I will follow that guidance and will not intentionally file motions that the Court has indicated are not available.

10. I respectfully ask the Court to consider my circumstances, my good-faith intent, and the corrective steps I have taken, and to decline monetary sanctions. I am not trying to abuse this Court's process; I am trying to survive and to preserve what remains of my legal rights.

I declare under penalty of perjury under the laws of the State of California that the foregoing

is true and correct.

Executed on January 18, 2026, at Los Angeles, California.

_____

/s/ DERRICK LAMONT BEVERLY